

23STCV22258 23STCV22258

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-05

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Case Number: 23STCV22258 Hearing Date: August 5, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

JANELLE

ARAMBULA

vs.

LOS

ANGELES COUNTY DEPARMENT OF MENTAL HEALTH

Case No.: 23STCV22258

Hearing

Date: August 5, 2026

Plaintiff's motion to strike is

GRANTED.

On 9/15/2023,

Plaintiff Janelle Arambula (Plaintiff) filed suit against Los Angeles County

Department of Mental Health (Defendant). On 2/5/2024, Plaintiff filed a first amended complaint (FAC), alleging: (1) discrimination; (2) harassment; (3) retaliation; (4) failure to prevent; (5) failure to provide reasonable accommodation; (6) failure to engage in good faith interactive process; (7) retaliation; and (8) retaliation.

On 8/5/2026,
Plaintiff moved to strike costs.

Discussion

Plaintiff

moves to strike Defendant's Memorandum of Costs in its entirety pursuant to CCP section 1032 and Government Code section 12965(b), because unlike typical civil litigation, a defendant in a FEHA action cannot recover costs unless the court finds the lawsuit frivolous, unreasonable, or groundless.

In

opposition, Defendant argues that the motion is moot "Plaintiff Janelle Arambula's motion to tax/strike costs is moot because the County of Los Angeles, an employer that prevailed at summary judgment, timely filed a motion for fees and costs, asserting that Arambula's case was frivolous, after Arambula filed the present motion, but within the statutory deadline to move for fees and costs. The memorandum of costs was filed out of caution, so that the County could not be accused of missing the statutory deadline for seeking costs. Taking this motion off calendar will not harm Arambula in any way, as she can attack the validity of the costs sought in her opposition to the County's motion, scheduled to be heard on September 1, 2026." (Opp., 2: 4-11.)

However, the motion set for 9/1/2026

is for attorney fees, and while it also seeks an award of costs, Plaintiff's motion here is properly filed and Defendant is not entitled to determine that a motion is moot because it believes Plaintiff can adequately address the arguments in an opposition to another motion at a later date. Notably, Defendant's contention that "Arambula is free to attack it in her opposition, but she cannot do so in the present motion" is not supported by any supporting legal authority. "When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citation to authority, we treat the point as waived." (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 784-785.)

Defendant

did not submit any substantive argument to show that Plaintiff's claim was frivolous, unreasonable, or groundless, and thus has not shown any entitlement to costs.

Based

on the foregoing, Plaintiff's motion to strike is granted.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.